CG7246: BLANKET ADDITIONAL INSURED ENDORSEMENT
COMMERCIAL CONTRACTORS COVERAGE

THIS ENDORSEMENT MODIFIES INSURANCE PROVIDED UNDER THE FOLLOWING:
COMMERCIAL GENERAL LIABILITY COVERAGE PART

A. WHO IS AN INSURED (SECTION II) IS AMENDED TO INCLUDE AS AN INSURED ANY PERSON OR ORGANIZATION WHOM YOU ARE REQUIRED TO ADD AS AN ADDITIONAL INSURED ON THIS POLICY UNDER A WRITTEN CONTRACT OR WRITTEN AGREEMENT. THE WRITTEN CONTRACT OR WRITTEN AGREEMENT MUST BE:

1. VALID AND LEGALLY ENFORCEABLE;
2. CURRENTLY IN EFFECT OR BECOMING EFFECTIVE DURING THE TERM OF THIS POLICY; AND
3. EXECUTED PRIOR TO AN "OCCURRENCE" RESULTING IN "BODILY INJURY", "PROPERTY DAMAGE", OR "PERSONAL AND ADVERTISING INJURY".

B. THE INSURANCE PROVIDED TO THE ADDITIONAL INSURED IS FURTHER LIMITED AS FOLLOWS:

1. THAT PERSON OR ORGANIZATION IS AN ADDITIONAL INSURED, BUT ONLY WITH RESPECT TO LIABILITY FOR "BODILY INJURY" OR "PROPERTY DAMAGE" CAUSED, IN WHOLE OR IN PART, BY "YOUR WORK" FOR THE ADDITIONAL INSURED WHICH IS THE SUBJECT OF THE WRITTEN CONTRACT OR WRITTEN AGREEMENT.
2. IF WE INSURED THE NAMED INSURED FOR MORE THAN ONE ANNUAL POLICY PERIOD:
   A. ONLY THE POLICY IN EFFECT AT THE TIME THE "BODILY INJURY", "PROPERTY DAMAGE", OR "PERSONAL AND ADVERTISING" INJURY FIRST OCCURS WILL APPLY;
   B. "BODILY INJURY", "PROPERTY DAMAGE", OR "PERSONAL AND ADVERTISING INJURY", FIRST OCCURS WHEN IT IS INITIALLY DISCOVERED BY ANY PERSON;
   C. ANY CONTINUATION, PROGRESSION, CHANGE OR RESUMPTION OF "BODILY INJURY", "PROPERTY DAMAGE", OR "PERSONAL AND ADVERTISING INJURY" WILL BE DEEMED TO BE ONE OCCURRENCE;
   D. OUR LIMIT OF LIABILITY WILL NOT EXCEED THE LIMITS OF INSURANCE FOR ONE ANNUAL POLICY PERIOD.
3. THE COVERAGE PROVIDED TO THE ADDITIONAL INSURED BY THIS ENDORSEMENT AND PARAGRAPH F. OF THE DEFINITION OF "INSURED CONTRACT" UNDER DEFINITIONS (SECTION V) DOES NOT APPLY TO "BODILY INJURY" OR "PROPERTY DAMAGE" CAUSED IN WHOLE OR IN PART BY THE "PRODUCTS COMPLETED OPERATIONS HAZARD" UNLESS REQUIRED BY THE WRITTEN CONTRACT OR WRITTEN AGREEMENT. WHEN COVERAGE DOES APPLY TO "BODILY INJURY" OR "PROPERTY DAMAGE" CAUSED IN WHOLE OR IN PART BY THE "PRODUCTS COMPLETED OPERATIONS HAZARD" SUCH COVERAGE WILL NOT APPLY BEYOND THE PERIOD OF TIME REQUIRED BY THE WRITTEN CONTRACT OR WRITTEN AGREEMENT.
4. THE INSURANCE PROVIDED TO THE ADDITIONAL INSURED DOES NOT APPLY TO: "BODILY INJURY", "PROPERTY DAMAGE", OR "PERSONAL AND ADVERTISING INJURY" ARISING OUT OF THE RENDERING OF, OR FAILURE TO RENDER, ANY PROFESSIONAL ARCHITECTURAL, ENGINEERING OR SURVEYING SERVICES, INCLUDING:
   A. THE PREPARING, APPROVING, OR FAILURE TO PREPARE OR APPROVE MAPS, SHOP DRAWINGS, OPINIONS, REPORTS, SURVEYS, FIELD ORDERS, CHANGE ORDERS OR DRAWINGS AND SPECIFICATIONS; AND
   B. SUPERVISORY, INSPECTION, ARCHITECTURAL OR ENGINEERING ACTIVITIES.
   C. DEFECTS IN DESIGN OR SPECIFICATIONS FURNISHED BY THE ADDITIONAL INSURED OR ITS' "EMPLOYEES".
5. WE HAVE NO DUTY TO DEFEND OR INDEMNIFY AN ADDITIONAL INSURED UNDER THIS ENDORSEMENT:
   A. FOR ANY LOSS WHICH OCCURS PRIOR TO OUR NAMED INSURED COMMENCING OPERATIONS AT THE LOCATION OF THE LOSS.

B. UNTIL WE RECEIVE WRITTEN NOTICE OF A CLAIM OR "SUIT" FROM THE ADDITIONAL INSURED AS REQUIRED IN THE DUTIES IN THE EVENT OF OCCURRENCE, OFFENSE, CLAIM OR SUIT CONDITION.

C. WITH RESPECT TO THE COVERAGE PROVIDED UNDER THIS ENDORSEMENT, THE COMMERCIAL GENERAL LIABILITY CONDITIONS (SECTION IV) ARE AMENDED AS FOLLOWS:

1. THE FOLLOWING IS ADDED TO THE DUTIES IN THE EVENT OF OCCURRENCE, OFFENSE, CLAIM OR SUIT CONDITION:

AN ADDITIONAL INSURED UNDER THIS ENDORSEMENT WILL AS SOON AS PRACTICABLE:

(1) GIVE WRITTEN NOTICE OF AN OCCURRENCE OR AN OFFENSE TO US WHICH MAY RESULT IN A CLAIM OR "SUIT" UNDER THIS INSURANCE;

(2) AGREE TO TRIGGER OR ACTIVATE ANY OTHER INSURANCE WHICH THE ADDITIONAL INSURED HAS FOR A LOSS WE COVER UNDER THIS COVERAGE PART BY TENDERING THE DEFENSE TO THE INSURERS OF ALL SUCH OTHER INSURANCE;

2. WITH RESPECT TO THE COVERAGE PROVIDED UNDER THIS ENDORSEMENT, CONDITION 4. OTHER INSURANCE IS REPLACED BY THE FOLLOWING:

A. PRIMARY INSURANCE

THIS INSURANCE IS PRIMARY IF YOU HAVE AGREED IN A WRITTEN CONTRACT OR WRITTEN AGREEMENT:

(1) THAT THIS INSURANCE BE PRIMARY. IF OTHER INSURANCE IS ALSO PRIMARY, WE WILL SHARE WITH ALL THAT OTHER INSURANCE AS DESCRIBED IN C. BELOW; OR

(2) THE COVERAGE AFFORDED BY THIS INSURANCE IS PRIMARY AND NON-CONTRIBUTORY WITH THE ADDITIONAL INSUREDS OWN INSURANCE.

PARAGRAPHS (1) AND (2) DO NOT APPLY TO OTHER INSURANCE TO WHICH THE ADDITIONAL INSURED HAS BEEN ADDED AS AN ADDITIONAL INSURED OR TO OTHER INSURANCE DESCRIBED IN PARAGRAPH B. BELOW.

B. EXCESS INSURANCE

THIS INSURANCE IS EXCESS OVER:

(1) ANY OF THE OTHER INSURANCE, WHETHER PRIMARY, EXCESS, CONTINGENT OR ON ANY OTHER BASIS:

(A) THAT IS FIRE, EXTENDED COVERAGE, BUILDER'S RISK, INSTALLATION RISK OR COVERAGE FOR "YOUR WORK";

(B) THAT IS FIRE, LIGHTNING, OR EXPLOSION INSURANCE FOR PREMISES RENTED TO YOU OR TEMPORARILY OCCUPIED BY YOU WITH PERMISSION OF THE OWNER;

(C) THAT IS INSURANCE PURCHASED BY YOU TO COVER YOUR LIABILITY AS A TENANT FOR "PROPERTY DAMAGE" TO PREMISES RENTED TO YOU OR TEMPORARILY OCCUPIED BY YOU WITH PERMISSION OF THE OWNER; OR

(D) IF THE LOSS ARISES OUT OF THE MAINTENANCE OR USE OF AIRCRAFT, "AUTOS" OR WATERCRAFT TO THE EXTENT NOT SUBJECT TO EXCLUSION G. OF SECTION I - COVERAGE A - BODILY INJURY AND PROPERTY DAMAGE LIABILITY

(E) THAT IS ANY OTHER INSURANCE AVAILABLE TO AN ADDITIONAL INSURED UNDER THIS ENDORSEMENT COVERING LIABILITY FOR DAMAGES ARISING OUT OF THE PREMISES OR OPERATIONS, OR PRODUCTS AND COMPLETED OPERATIONS, FOR WHICH THE ADDITIONAL INSURED HAS BEEN ADDED AS AN ADDITIONAL INSURED BY THAT OTHER INSURANCE.

(2) WHEN THIS INSURANCE IS EXCESS, WE WILL HAVE NO DUTY UNDER COVERAGES A OR B TO DEFEND THE ADDITIONAL INSURED AGAINST ANY "SUIT" IF ANY OTHER INSURER HAS A DUTY TO DEFEND THE ADDITIONAL INSURED AGAINST THAT "SUIT". IF NO OTHER INSURER DEFENDS, WE WILL UNDERTAKE TO DO SO, BUT WE WILL BE ENTITLED TO THE ADDITIONAL INSURED'S RIGHTS AGAINST ALL THOSE OTHER INSURERS.

(3) WHEN THIS INSURANCE IS EXCESS OVER OTHER INSURANCE, WE WILL PAY ONLY OUR SHARE OF THE AMOUNT OF THE LOSS, IF ANY, THAT EXCEEDS THE SUM OF:

(A) THE TOTAL AMOUNT THAT ALL SUCH OTHER INSURANCE WOULD PAY FOR THE LOSS IN THE ABSENCE OF THIS INSURANCE; AND
(B) THE TOTAL OF ALL DEDUCTIBLE AND SELF INSURED AMOUNTS UNDER ALL THAT OTHER INSURANCE.

(4) WE WILL SHARE THE REMAINING LOSS, IF ANY, WITH ANY OTHER INSURANCE THAT IS NOT DESCRIBED IN THIS EXCESS INSURANCE PROVISION AND WAS NOT BOUGHT SPECIFICALLY TO APPLY IN EXCESS OF THE LIMITS OF INSURANCE SHOWN IN THE DECLARATIONS OF THIS COVERAGE PART.

C. METHOD OF SHARING

IF ALL OF THE OTHER INSURANCE AVAILABLE TO THE ADDITIONAL INSURED PERMITS CONTRIBUTION BY EQUAL SHARES, WE WILL FOLLOW THIS METHOD ALSO. UNDER THIS APPROACH EACH INSURER CONTRIBUTES EQUAL AMOUNTS UNTIL IT HAS PAID ITS APPLICABLE LIMIT OF INSURANCE OR NONE OF THE LOSS REMAINS, WHICHEVER COMES FIRST.

IF ANY OF THE OTHER INSURANCE AVAILABLE TO THE ADDITIONAL INSURED DOES NOT PERMIT CONTRIBUTION BY EQUAL SHARES, WE WILL CONTRIBUTE BY LIMITS. UNDER THIS METHOD, EACH INSURER'S SHARE IS BASED ON THE RATIO OF ITS APPLICABLE LIMIT OF INSURANCE TO THE TOTAL APPLICABLE LIMITS OF INSURANCE OF ALL INSURERS.

ALL TERMS AND CONDITIONS OF THIS POLICY APPLY UNLESS MODIFIED BY THIS ENDORSEMENT.